FEDERAL BANK
YOUR PERFECT BANKING PARTNER

KYC CONNECT

# Terms and Conditions

## DEFINITIONS

In this document the following words and phrases have the meaning set below unless the context indicates otherwise:

"**Account Holder**" or **"Customer"** shall mean a person holding an operative Savings Bank/Current Account with Federal Bank.

**"Account/s**" shall mean the bank account/s maintained by the Customer with FEDERAL BANK for which KYC Connect services are availed/to be availed (each an "Account" and collectively "Accounts").

**"Device"** means any Laptops, Desktops, Smart Speakers, Mobile Phones and Tablets that supports the software/application for availing the facility.

"**Facility'' or 'Services "** shall mean the specified online banking services (as may be updated by Federal Bank from time to time) provided by FEDERAL BANK, at its sole and absolute discretion, through Fed- e-Point on selected Platforms.

**"FEDERAL BANK"** shall mean The Federal Bank Ltd., a Banking company within the meaning of Companies Act 2013 having its registered office at Federal Towers, Aluva, Kerala (The term includes its Affiliates)

**"KYC Connect"** means the self-service portal offered by Federal Bank through its Website that allows Customers to avail various banking services and manage their Accounts online independently without visiting a Federal Bank branch.

**"Personal Information"** shall mean the personally identifiable information/ data related to the User/Customer obtained in connection with the Facility.

**"User**" shall mean a Customer/ Account Holder of the Bank availing Services/ Facility through KYC Connect.

"**Website"** refers to the website owned, established and maintained by FEDERAL BANK located at the URL www.federalbank.co.in or any other website as may be decided by FEDERAL BANK from time to time.

### Acceptance of Terms and Conditions

The User agrees that, by the usage of any of the Services / part thereof, the User shall deem to have read, understood and irrevocably accepted and agreed to all these terms and conditions and

thereupon these Terms and Conditions shall be binding on the User in the same manner as if the User

has agreed to the same in writing. The terms and conditions shall be subject to the modifications as may be made thereon by FEDERAL BANK from time to time at its sole discretion.

The User availing the Services hereby grants express authority to FEDERAL BANK for carrying out the instructions related to the Services requested by the User through KYC Connect. Any instructions provided under prescribed authentication (OTP to registered mobile number/ User ID and password) of the Customer shall be deemed to be issued by the Account Holder himself/herself.

FEDERAL BANK'S own record or log of transactions related to the Services maintained through computer systems or otherwise shall be accepted as conclusive and binding on the User for all purposes.

For availing the Facility / Services offered via KYC Connect, the User shall be deemed to have read and accepted (a) the General Terms and Conditions applicable to the Services/ Facility provided at the website of the Bank or elsewhere and (b) the Privacy Policy of the Bank applicable for availing the Facility mentioned herein (c) Safe Secure Usage Guidelines.

*For account related functionalities of the Facility, the Customer agrees/understands that these terms and conditions shall be in addition to and not in derogation of the terms and conditions governing FEDERAL BANK Tele-Banking Facility, FEDNET, ATM/ Debit Card Facility, FedMobile and also the general Terms and Conditions relating to opening and operation of Account/s of the Customer. In case of conflict between the general terms and conditions relating to Account/s and the terms and conditions contained herein, in relation to KYC Connect Facility, the terms and conditions contained herein shall prevail. (*applicable for account related functionalities under the Facility)

Federal Bank shall be at liberty to up or down the live modules in KYC Connect at its sole discretion, without any prior notice to the Users/ Customers.

**Availability of Services & Disclosure:**

a) FEDERAL BANK shall endeavour to provide to the User/Customer such Services/Facility through KYC Connect as FEDERAL BANK may decide from time to time and as displayed in KYC Connect portal in the Website.

b) FEDERAL BANK reserves the right to decide what Services may be offered to a Customer on each of his/her Account/s and also, such offers may differ from User to User. FEDERAL BANK may also make additions / deletions to the services offered through KYC Connect at its sole and absolute discretion.

c) The Facility is made available to the User, at the sole discretion of FEDERAL BANK and may be discontinued / modified / altered by FEDERAL BANK at any time without prior notice. This

Facility might not be available on all device & platforms and will depend on the device & platforms configuration and the minimum requirements for running the application.

**Undertaking by the User:**

The User hereby unconditionally and irrevocably undertakes, acknowledges and agrees to the following:

a) The Facility offered to the User through KYC Connect shall be subject to applicable law and the rules, regulations, notifications, circulars and guidelines introduced or amended from time to time by the Reserve Bank of India and/or any regulatory/ statutory/ governmental authority.

b) That the Facility can be availed only through such versions of the operating systems of the Devices as specified by Federal Bank, at its sole and absolute discretion. There will be no obligation on FEDERAL BANK to support all the versions of the operating systems. The User agrees that the User shall be responsible for upgrading any software, hardware and the operating system at his cost, from time to time, to avail the Facility. FEDERAL BANK shall be at liberty to change, vary or upgrade its software, hardware, operating systems, etc. from time to time and shall be under no obligation to support the software, hardware, operating systems used by the User and that the same shall be the User's sole responsibility to be able to continue his use of the Facility.

c) That the User shall not reproduce, copy, or redistribute for commercial purposes any materials or design elements of the Facility provided hereunder.

d) Users must comply with Security measures mentioned in the Secure Usage Guidelines like CAPTCHA and OTP limits to prevent brute force attacks.

e) Sessions will time out after inactivity, in line with the Bank's security policy/Security Usage Guidelines.

f) Account reset via debit/credit card will only be allowed in cases of login blockages die to OTP failures.

g) Customers can escalate issue using the grievance redressal mechanism.

h) OTPs shall be entered only after clearly understanding the purpose conveyed along with OTP/ SMS notification. Any entry of OTP will be deemed as voluntarily provided by Customers after ascertaining the purpose.

**Conditions specific for accessing / availing Account Related Functionalities**

The last updated mobile number in the records of FEDERAL BANK would be deemed as the registered Mobile Phone number for the Facility.

The Customer shall be responsible for intimating to FEDERAL BANK any change in his Mobile Phone Number or email address or Account details and FEDERAL BANK will not be liable for sending Alerts

or other information over the mobile phone number/email address /fax number recorded with FEDERAL BANK.

The instructions of the Customer/s via KYC Connect shall be effected after authentication of the Customer by verification of the Mobile Phone Number and/or through verification of OTP/ password allotted by FEDERAL BANK to the Customer and/or through any other mode of verification as may be stipulated at the discretion of FEDERAL BANK.

If the Customer has reason to believe that his Mobile Phone Number is / has been allotted to another person and / or there has been an unauthorized transaction in his account and / or his mobile phone is lost, he shall immediately inform FEDERAL BANK under acknowledgment about the same. If such a situation arises and the Customer has not informed the Bank about the same, the FEDERAL BANK shall have no liability whatsoever in connection with any unauthorised transactions resulting from such events.

The Customer shall be solely responsible for protecting his/her OTP, Password, Mobile Phone Number and any access code given by FEDERAL BANK for using the Facility.

The Customer grants express authority to FEDERAL BANK for carrying out transactions and instructions authenticated as per these terms and conditions.

The Customer agrees and acknowledges that FEDERAL BANK shall in no way be held responsible or liable if the Customer incurs any loss as a result of any/ all of his/her information (including Personal Information and any information regarding his/her Account(s)) being carrying out the instruction/s of the Customer issued via KYC Connect. The Customer shall fully indemnify and hold harmless FEDERAL BANK and the affiliates in respect of the same.

The Customer hereby authorises FEDERAL BANK to comply with any/all instructions given by the Customer/s through KYC Connect in conjunction with the correct OTP/ Password .The FEDERAL BANK shall be entitled to presume that any instruction given to the Bank using the Facility in accordance with the terms and conditions stipulated herein are given/ authorized by the Customer and agrees that the Bank will not be liable for any fraudulent, duplicate or erroneous instructions given to the Bank using the OTP/ Password / allotted to the Customer.

The Customer is further advised to ignore any e-mail /mobile messages asking for his/her user details. The Bank or its employees will never contact the Customer asking for online banking Password / OTP etc.

FEDERAL BANK shall endeavour to carry out the instructions promptly provided that FEDERAL BANK, shall not be responsible for any failure or delay in carrying out the instructions due to any reason whatsoever, including and not limited to the failure of operational system or due to any requirements/ compulsions of law or due to mobile network failure or any failure at the Service Provider’s/ partners’ platform

Instructions: All instructions for availing the services under the Facility shall be provided through the Mobile Phone Number in the manner indicated by FEDERAL BANK. The Customer shall be responsible for the accuracy and authenticity of the instructions provided to FEDERAL BANK. FEDERAL BANK shall not be required to independently verify the instructions, and the instruction shall remain effective till such time the same is countermanded by further instructions by the

Customer. FEDERAL BANK shall have no liability if it does not or is unable to stop or prevent the implementation of an instruction which is subsequently countermanded. Where FEDERAL BANK considers the instructions to be inconsistent or contradictory it may seek clarification from the Customer before acting on any instruction of the Customer or act upon any such instruction as it may deem fit. FEDERAL BANK states that it has no liability or obligation to keep a record of the instructions to provide information to the Customer or for verifying Customer's instructions. FEDERAL BANK may refuse to comply with the instructions without assigning any reason and shall not be under any duty to assess the prudence or otherwise of any instruction.

Any instruction, order, direction, request entered/authenticated using the OTP/ Password of the Customer received through KYC Connect shall be deemed to be issued by/ received from the Customer. All instructions, requests, directives, orders, directions, entered by the Customer, either electronically or otherwise, issued by the Customer/s are the sole responsibility of the Customer. The Customer understands that entering an instruction, direction, order, and request with FEDERAL BANK, by the Customers, either electronically or otherwise, does not guarantee execution of such instruction, direction, order, request. FEDERAL BANK shall not be deemed to have received any instruction, direction, order, request electronically transmitted by the Customer until it confirms the receipt of such instruction, direction, order, request.

The Customer accepts that all information / Instructions will be transmitted to and / or stored at various locations and shall be accessed by the personnel of FEDERAL BANK. FEDERAL BANK is authorized to provide any information or details relating to the Customer to third party

facilitate providing of the Facility and so far it is necessary to give effect to any instructions.

If the Customer becomes aware that an unauthorized transaction has taken place in his account through the KYC Connect or by any other means he/she shall immediately inform FEDERAL BANK and request to block access to Facility.

**Authority to FEDERAL BANK**

The Customer irrevocably and unconditionally authorizes FEDERAL BANK to access all his / her /its Accounts for effecting Account Related Functionalities through this Facility.

**Records**

All records maintained by FEDERAL BANK of the transactions arising out of use of the Facility, including the time of the transaction recorded shall be conclusive proof of the genuineness and accuracy of the transactions. The authority to record the transaction details is hereby expressly granted by the Customer to FEDERAL BANK

**Accuracy of Information**

The User undertakes to provide accurate information wherever required and shall be responsible for the correctness of information provided by him to FEDERAL BANK at all times including for the purposes of availing of the Facility. FEDERAL BANK shall not be liable for consequences arising out of erroneous information supplied by the User.

**Privacy Policy**

The User has read, understood and accepted the Privacy Policy of the Bank which can be found at https://www.federalbank.co.in/privacy-policy ("**Privacy Policy**") **-** All the changes thereto from time to time by the Bank shall be binding on the User and the User shall update itself periodically for the privacy policies in force then from time to time by using the Bank's website for this purpose.

**Disclaimer of Liability**

FEDERAL BANK will not be liable for any loss / damages, caused (i)on account of the User committing any breach of these Terms and Conditions ; (ii) due to any act / omission done by the bank, in good faith ; (iii)loss of any information / instructions in transmission ; (iv)unauthorized access by any other person to any information /instructions given by the User or breach of confidentiality; (iv)any loss or damage to the device/ / mobile phone, including loss of data, corruption of data arising from downloading any software/application for availing/use of the Facility. Under no circumstances shall FEDERAL BANK be liable for any damages whatsoever whether such damages are direct, indirect, incidental, consequential and irrespective of whether any claim is based on loss of revenue, interruption of business or any loss of any character or nature whatsoever and whether sustained by the User or by any other person.

FEDERAL BANK makes no warranty or representation of any kind in relation to the Facility, the services, or their function or performance or for any loss or damage whenever and however suffered or incurred by the User or by any other person resulting from or in connection with the Facility.

**NO WARRANTIES**: TO THE FULLEST EXTENT PERMISSIBLE PURSUANT TO APPLICABLE LAW, FEDERAL BANK AND THEIR RESPECTIVE THIRD-PARTY PARTNERS, LICENSORS, AND SUPPLIERS DISCLAIM ALL WARRANTIES, STATUTORY, EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT OF PROPRIETARY RIGHTS. NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY THE USER FROM FEDERAL BANK OR THIRD-PARTY SERVICE PROVIDER OR THROUGH THE FACILITY WILL CREATE ANY WARRANTY NOT EXPRESSLY STATED HEREIN. THE USER EXPRESSLY ACKNOWLEDGE THAT AS USED IN THIS SECTION, THE TERMS "FEDERAL BANK" AND "THIRD PARTY SERVICE PROVIDERS" INCLUDE FEDERAL BANK'S AND THIRD-PARTY SERVICE PROVIDER'S RESPECTIVE OFFICERS, DIRECTORS, EMPLOYEES, SHAREHOLDERS, AGENTS, REPRESENTATIVES, LICENSORS AND SUBCONTRACTORS. THE USER EXPRESSLY AGREES THAT USE OF THE FACILITY IS AT USER'S SOLE RISK AND RESPONSIBILITY. THE FACILITY AND ANY DATA, INFORMATION, THIRD PARTY SOFTWARE, REFERENCE SITES, SERVICES, OR SOFTWARE MADE AVAILABLE IN CONJUNCTION WITH OR THROUGH THE FACILITY ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE," "WITH ALL FAULTS" BASIS AND WITHOUT WARRANTIES OR REPRESENTATIONS OF ANY KIND EITHER EXPRESS OR IMPLIED. FEDERAL BANK, THIRD PARTY SERVICE PROVIDER, AND THEIR RESPECTIVE THIRD PARTY SUPPLIERS, LICENSORS, AND PARTNERS DO NOT WARRANT THAT THE DATA, SOFTWARE, FUNCTIONS, OR ANY OTHER INFORMATION OFFERED ON OR THROUGH THE FACILITY OR ANY REFERENCE SITES WILL BE UNINTERRUPTED, OR FREE OF ERRORS, DEFECTS, DELAYS, VIRUSES OR OTHER HARMFUL COMPONENTS AND DO NOT WARRANT THAT ANY OF THE FOREGOING WILL BE CORRECTED. FEDERAL BANK, THIRD PARTY SERVICE PROVIDER, AND THEIR RESPECTIVE THIRD PARTY SUPPLIERS, LICENSORS, AND PARTNERS DO NOT WARRANT OR MAKE ANY REPRESENTATIONS REGARDING THE USE OR THE RESULTS OF THE USE OF THE FACILITY OR ANY

REFERENCE SITES IN TERMS OF CORRECTNESS, ACCURACY, ADEQUACY, RELIABILITY, SUITABILITY OR OTHERWISE. THE USER UNDERSTANDS AND AGREES THAT THE USER'S USAGE, ACCESS, DOWNLOAD, OR OTHERWISE OBTAINING OF INFORMATION, MATERIALS, OR DATA THROUGH THE FACILITY (INCLUDING RSS FEEDS) OR ANY REFERENCE SITES IS AT ITS OWN DISCRETION AND RISK, AND THAT THE USER WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO THE PROPERTY (INCLUDING BUT NOT LIMITED TO HIS/ HER COMPUTER SYSTEM AND DEVICE) OR LOSS OF DATA THAT RESULTS FROM THE DOWNLOAD OR USE OF SUCH MATERIAL OR DATA.

**Prohibited Conduct**

This section lists various conduct and actions, which are PROHIBITED while usage of the Facility. By using the Facility, the User agrees that THEY WILL NOT engage in any of the following:

i. Use the Facility for any purposes other than in accordance with these terms;

ii. Impersonate any person or entity, falsely claim an affiliation with any person or entity, or access the Accounts of others without permission, forge another persons' digital/wet signature, misrepresent the source, identity, or content of information transmitted via the Facility, perform any other similar fraudulent activity or otherwise send or receive what Bank reasonably believes to be potentially fraudulent funds.

iii. Infringe FEDERAL BANK's or any third party's intellectual property rights, rights of publicity or rights of privacy.

iv. Use the Facility, or request or make any transfer, for any illegal purpose, or in violation of any applicable law, including but not limited to laws governing taxation, money laundering, terrorism financing, intellectual property, purchase of prohibited material over e-commerce and other proprietary rights and data protection and privacy.

v. Refuse to cooperate in an investigation or provide confirmation of User's identity or any other information you provide to Bank;

vi. Remove, circumvent, disable, damage or otherwise interfere with security-related features of the Facility or features that enforce limitations on the use of the Facility;

vii. Reverse engineer, decompile, disassemble or otherwise attempt to discover the source code of the Facility or any part thereof;

viii. Use the Facility in any manner that could damage, disable, overburden, or impair it, including but not limited to using the Facility in an automated manner;

ix. Modify, adapt, translate or create derivative works based upon the Facility or any part thereof, except and only to the extent that such prohibition is expressly prohibited by applicable law notwithstanding this limitation;

x. Intentionally interfere with or damage operation of the Facility or any User's enjoyment of them, by any means, including but not limited to uploading or otherwise disseminating viruses, adware, spyware, worms, or other malicious code;

xi. Use any robot, spider, other automatic device, or manual process to monitor or copy the Facility website without prior written permission;

xii. Use any device, software or routine to bypass Facility's robot exclusion headers, or interfere or attempt to interfere, with the Facility;

xiii. Sell the software or any services, information, or software associated with the Facility or derived from it;

xiv. Breach this terms and conditions or any other agreement or policy of FEDERAL BANK;

xv. provide false, inaccurate or misleading information;

xvi. Interfere with the authentication of any instruction originating from Customer's mobile device or provided under his / her account.

xvii. Access the Facility from a country that is not included in FEDERAL BANK's permitted countries list

xviii. Change or terminate Customer's mobile phone number or registered email id without prior notice to FEDERAL BANK;

xix. Provide false, inaccurate or misleading information;

xx. Send or receive what FEDERAL BANK or third-party service provider, regulators reasonably believes to be funds derived from, or transactions involving, fraud or unlawful activity;

xxi. Control an account that is linked to another account that has engaged in any of the foregoing activities. FEDERAL BANK may use evidence other than Customer's account information to determine whether you control an account in someone else's name, including but not limited to Internet Protocol addresses, common business names, phone numbers, and mailing addresses

**Indemnity**

The User undertakes to indemnify and keep FEDERAL BANK and its officers/employees and other applicable third parties, fully indemnified and harmless from and against all the consequences of breach/ non- compliance of any of the terms, conditions, statements, undertakings representations and warranties of these Terms and Conditions, any dispute / litigation caused by User's act or omission, error/ mistake/ negligence/ misconduct by the User, as also of any of its representations or warranties not being found to be true at any point of time, including any actions, notices, suits, claims, proceedings, damages, liabilities, losses, expenses, costs or taxes faced, suffered or incurred by the Bank including from any third parties. This indemnity shall remain valid and subsisting and binding upon you notwithstanding withdrawal of any Services/Facility(ies) of Federal Bank or closure, for any reason whatsoever, of the Account or suspension or cancellation of any or all Services/Facility(ies) of Federal Bank

**Governing Law**

Any dispute or differences arising out of or in connection with the Facility shall be subject to the exclusive jurisdiction of the Courts of ERNAKULAM, KERALA. FEDERAL BANK accepts no liability whatsoever, direct or indirect for non-compliance with the Laws of any country other than that of India. The mere fact that the Facility can be accessed by a User in a country other than India does

not imply that the laws of the said country govern these terms and conditions and / or the operations in the accounts of the User and / or the use of the Facility.

**General**

1. Only KYC complied and active accounts will get access to KYC Connect Portal.
2. Only accounts having mode of operation as Single/Either or Survivor (E or S) can access KYC Connect Portal.
3. If same mobile number is updated in more than one account, you will not be able to access to KYC Connect Portal.
4. For accessing different modules in KYC Connect separate login would be required.

FEDERAL BANK may sub-contract and employ agents/ third party service providers to carry out any of its obligations under the Services.

**Communications through Electronic means**

Documents sent by electronic delivery will contain all the information as it appears in the printed hardcopy version as prepared and distributed by the originator, with the possible exception of graphic insertions such as photographs or logotypes. Electronic delivery may be in the form of an electronic mail, an attachment to the electronic mail, or in the form of an available download from the Website.

FEDERAL BANK would be deemed to have fulfilled its legal obligation to deliver to the User any document if such document is sent via electronic means. Failure to advise FEDERAL BANK of any difficulty in opening a document so delivered within twenty-four (24) hours after delivery shall be deemed to be validly delivered to the User.

**GRIEVANCE REDRESSAL PROCESS**

The User understands and acknowledges that if they have any complaint relating to the Facility, they can resort to the Bank's grievance redressal mechanism which is detailed below:

*User may contact Customer Care at*

**Toll Free: 1800 420 1199 / 1800 425 1199 ; Email: contact@federalbank.co.in**

For further escalations, kindly visit https://www.federalbank.co.in/grievance-redressal-general-banking

**********